

**MINISTRY OF EDUCATION MINISTRY OF JUSTICE
AND TRAINING**

HANOI LAW UNIVERSITY

HUA THI HONG

**PROTECTING INTELLECTUAL PROPERTY
RIGHTS AT THE BORDER THROUGH CONTROL
OF COUNTERFEIT GOODS OF INTELLECTUAL
PROPERTY BY VIETNAMESE CUSTOMS**

SUMMARY OF THE THESIS OF PH.D OF LAW

HANOI - 2023

**MINISTRY OF EDUCATION MINISTRY OF JUSTICE
AND TRAINING**

HANOI LAW UNIVERSITY

HUA THI HONG

**PROTECTING INTELLECTUAL PROPERTY
RIGHTS AT THE BORDER THROUGH CONTROL
OF COUNTERFEIT GOODS OF INTELLECTUAL
PROPERTY BY VIETNAMESE CUSTOMS**

SUMMARY OF THE THESIS OF PH.D OF LAW

**Major: Civil Law and Civil Procedure
Code : 62 38 01 03**

HANOI - 2023

**This work was completed at:
HANOI LAW UNIVERSITY**

***Scientific instructors:* 1. Assoc Prof. Dr. Vu Thi Hai Yen
2. Dr. Nguyen Nhu Quynh**

Refferee 1:.....

Refferee 2:.....

Refferee 3:.....

**The thesis is defended in front of the doctoral thesis grading
committee at the university level, meeting at Hanoi Law University**

at: date month year 2023

**The thesis can be found at National Library and
Library of Hanoi Law University**

FOREWORD

1. The urgency of researching the topic

The Customs legal system and the guiding intellectual property law remains many inadequacies and not suitable for practice.

Practice of protecting intellectual property rights at the border through control counterfeit goods of intellectual property of Customs authorities still have many limitations, Customs mechanism and related agencies operate inefficiently.

Therefore, the PhD student has chosen the topic “Protecting intellectual property rights at the border through control of counterfeit goods of intellectual property by Vietnamese Customs is absolutely necessary in both theory and actual situation.

2. Research purpose and tasks of the study

2.1. Research purpose

The thesis explains and clarifies the theoretical and actual issues of protection of intellectual property rights at the border through the control of counterfeit goods of intellectual property by Vietnamese Customs; proposing solutions to improve the law and improve the effectiveness of Customs authorities in controlling goods forging of intellectual property of Vietnamese Customs presently.

2.2. Research tasks

Thesis studies the theoretical basis system for protecting of intellectual property rights at the border through the control of counterfeit goods of intellectual property; assess and compare international law and law of several countries with Vietnamese law on controlling counterfeit goods of intellectual property of the Customs authority; analyze and assess the current state of Vietnamese law and actual situation, find out the causes and existing and propose solutions to improve Vietnamese law and solution to improve the efficiency of controlling counterfeit goods of intellectual property by Vietnamese Customs.

3. Objects and scope of research of the topic

3.1. Research object of the thesis

The research object of the thesis is theory and practice activities to protect intellectual property rights at the border through controlling counterfeit goods of intellectual property, including:

- Theoretical issues on the protection of intellectual property rights at

the border through control of counterfeit goods of intellectual property including: reasoning about protect intellectual property rights at the border, theory on counterfeit goods of intellectual property and control counterfeit goods of intellectual property;

- Legal issues on the control of counterfeit goods of intellectual property;

- Actual situation of Vietnamese Customs on controlling activities of counterfeit goods of intellectual property;

- International treaties to which Vietnam is a signatory and the law of some countries on the control of counterfeit goods of intellectual property in the role of the object of comparison and assessment with the provisions of Vietnamese law.

3.2. Research scope of the thesis

- In term of content: The thesis clarifies the theoretical issues of protection intellectual property rights at the border, counterfeit goods of intellectual property and controlling of Customs; Regulations of Vietnamese law, some International treaties to which Vietnam is a member on the control of counterfeit goods of intellectual property of Customs and laws of some countries in the world.

- In term of space: concentrated in a few localities, a key area with large import and export turnover.

- In term of time: The thesis researches the operation activities of Customs from 2014 to 2021.

4. Research methods and methodology

4.1. Methodology

Dialectical materialism and historical materialism of Marxism-Leninism is the methodology used by the PhD students throughout the entire research and problem-solving process related to the Thesis.

4.2. Research methods

PhD student use a number of scientific research methods as follows: analytical method, synthesis method, comparative method, survey method, interview method.

5. New contributions of the Thesis

At first, the Thesis clarifies the theoretical issue about: the protection of intellectual property rights, the protection of intellectual property rights at the border, counterfeit goods of intellectual property and control

counterfeit goods of intellectual property of Customs.

Second, through the study of legal situation and actual situation of applying the law on control of counterfeit goods of intellectual property at the border, learn from the experience of some countries, the thesis deepen Theoretical issues and research problems of the thesis topic.

Third, the solutions proposed by the thesis will contribute to improve legal regulations and improve the efficiency of counterfeit goods of intellectual property by Vietnamese Customs in the near future.

6. Scientific significance of the thesis

The thesis offers solutions to improve the law and improve the effectiveness of import and export counterfeit goods of intellectual property. This is a research document, reference for the authorities, the leaders, managers, jurisprudence researchers in Vietnam in the process of building and perfecting the law.

7. Thesis structure

Besides the foreword, conclusion, list of references and appendices, the content of the thesis include 3 chapters:

Chapter 1: Theoretical issues on protection of intellectual property rights at the border through the control of counterfeit goods of intellectual property.

Chapter 2: Legal status and actual situation of control counterfeit goods of intellectual property of Vietnam Customs.

Chapter 3: Orientation, recommendations for improving law and solutions to effective control of counterfeit goods of intellectual property by Vietnam Customs.

RESEARCH SITUATION AND BASIS OVERVIEW THEORETICAL OF THESIS THEME

1. Overview of the research situation related to the thesis topic

1.1. Published research works related to the thesis topic

1.1.1. Scientific works in Vietnamese

1.1.1.1. Science research topic

- Scientific project at the Ministry of Finance (2012) "Building a strategy to enforce intellectual property rights at the border of Vietnam Customs" by MSc. Vu Hong Loan.

- Scientific project at the Ministry of Science and Technology (2015) "Research and propose solutions to improve the efficiency of the IPR enforcement mechanism to meet the requirements of international integration" by Dr. Nguyen Nhu Quynh is the chairman.

- Scientific project at the General Department of Customs (2016) "Theory and proposal of solutions to improve the effectiveness of controlling counterfeit goods of imported origin until 2020" by MSc. Nguyen Van Tho is the chairman.

- University-level scientific research project of the National Economics University (2016) "Enforcement mechanism to combat IPR infringement actions in Vietnam - comparison with some countries" by Dr. Nguyen Tuan Anh is the chairman.

1.1.1.2. Books, theses, dissertations

a. Book

- The "Intellectual Property Handbook" of the World Intellectual Property Organization, Publishing House. Culture - Information, Hanoi is published by the National Office of Intellectual Property with permission and sponsorship of WIPO.

- Monograph "Intellectual Property Rights" by author Le Net, Publishing House. City National University. HCM (2005).

- The "White Book on Trade and Investment Issues in Vietnam" published by the European Chamber of Commerce in Vietnam (Eurocham) from 2012 to 2017.

b. Theses and dissertations

- Doctoral thesis "The issue of enforcement of intellectual property rights with foreign elements by the Vietnam People's Public Security force in the current period" 2014 by Nguyen Vinh Dien, Hanoi Law University.

- Master's thesis, "Enforcing intellectual property rights according to Vietnamese law and the laws of some Southeast Asian countries" in 2011, by author Duong Dinh Cong, Faculty of Law, Hanoi National University.

- Master's thesis "Enforcing intellectual property rights at the border of Vietnam customs authorities", 2011 by Tran Thi Thu Van, Hanoi Law University and Master's thesis "Enforcing rights protection Industrial property rights of Vietnam Customs for imported goods" 2011 by author Trieu Thi Thuy Trang, National Economics University.

- Master's thesis "Vietnamese law on control of imported and exported goods related to intellectual property" in 2011 by Nguyen Minh Duc, Ho Chi Minh City University of Law.

- Master's thesis "Handling intellectual property rights infringement by controlling import and export goods according to the Intellectual Property Law 2005" in 2008 by Truong The Khanh Quynh, Ho Chi Minh City University of Law .

c. Scientific articles, conference presentations

- Article "Enforcing intellectual property rights at the border - Effective prevention measures for violations" by Master Nguyen Thai Mai, Journal of Law No. 3/2004.

- Article "Effective protection and enforcement of intellectual property rights by the customs industry - An important condition for Vietnam to join the WTO", Master Nguyen Ngoc Son, Journal of Law No. 2/2005.

- Article "Implementing intellectual property rights protection at customs offices according to the provisions of Vietnamese law" by Dr. Nguyen Hong Bac, Journal of Law No. 3/2010.

- Article "Enforcing intellectual property rights at the border - Comparing the provisions of the TRIPs/WTO Agreement with Vietnamese law" by Dr. Vu Thi Hong Yen, Journal of Law No. 3/2005.

- Article "Inadequacies in controlling exported goods related to Intellectual Property and some recommendations" by Doan Duc Luong and Nguyen Minh Duc, published in the Journal of Law and Development of the Vietnam Lawyers Association Male.

- Article "Enforcement of intellectual property rights protection by Vietnam Customs for exported and imported goods" by Nguyen Thi Thuong Huyen, Journal of State and Law No. 5, 2008.

- Article "Exchanging some thoughts on the concept of counterfeit

goods in the context of the fight against counterfeit goods and protecting intellectual property rights in Vietnam" by Dr. Nguyen Thi Que Anh, VNU Science Magazine, Law study, volume 30, number 1 (2014), pages 44 - 53.

- Article "Inadequacies and solutions to improve the law on controlling counterfeit goods on intellectual property exported and in transit" by Hua Thi Hong, published in the Journal of Legislative Studies, period 2 - April /2016.

- Article "Discussing border control mechanisms to protect intellectual property rights", by Dang Vu Huan, Journal of Legal Sciences (1), 2013.

- Article "Protecting intellectual property rights by border control measures" by Tao Thi Hue, Journal of Law No. 3/2014, pages 10 - 17.

1.1.2. Research works in foreign languages

Up to now, there have been many foreign projects and works researching IP and enforcement of IP rights. Some typical projects and works can be mentioned as follows:

1.1.2.1. Books, textbooks, theses, dissertations

- Monograph "Intellectual Property Rights Law" by authors Tina Hart, Simon Clark and Linda Fazzani.

- Monograph "Global Trade System" edited by Kym Anderson and Bernard Hoekman.

- Monograph "Enforcement of Intellectual Property Rights Through Border Measures - Law and Practice in the EU" (Enforcement of intellectual property rights through border measures - Law and practice applied in Europe" by Olivier Vrins and Marius Schneider, editors.

- Monograph book "Guidebook on Enforcement of Intellectual Property Rights" by Professor Michael Blakeney of Queen Mary Intellectual Property Research Institute - University of London, published in London 2008.

- Monograph "Intellectual Property Enforcement - A commentary on the Anti-Counterfeiting Trade Agreement (ACTA)" by Michael Blakeney.

- Monograph "Research Handbook on Cross-border Enforcement of Intellectual Property" edited by Paul Torremans.

- The publication "The Enforcement of Intellectual Property Rights" was released by the World Intellectual Property Organization in 2012.

- The book "Anti-Counterfeiting in the twenty first century" by Anne

Gilson LaLonde.

- Book "Industrial Property Rights Standard Textbook - General Information" (Standard Textbook on Industrial Property Rights) released by the Japan Patent Office (JPO) in 2007.

- Monograph book "International Intellectual Property, Problems, Cases, and Materials" by authors Daniel C.K. Chow and Edward Lee.

- Monograph "International Intellectual Property Law and Policy" by authors Graeme Dinwoodie, William Hennessey, Shira Perlmutter, Graeme Austin. The book "Intellectual Property Enforcement International Perspectives" is edited by Xuan Li and Carlos Maria Correa.

- Master's thesis "Enforcement of Intellectual property rights and economic integration in Vietnam" (Enforcement of Intellectual Property rights and economic integration in Vietnam) in 2008 by author Vu Xuan Binh, University of Policy Management KDI company - Korea.

- Master's thesis "Counterfeit goods Intellectual property in transit" 2010 by Gustaf Åkesson, Faculty of Law - Lund University, Sweden.

1.1.2.2. Scientific articles, conference presentations

- Article "The Fake and the Fatal: The Consequences of Counterfeits" by author Kevin Lewis.

- Article "Characteristics of IP rights enforcement in Korea and China" by authors Takashi Nomuraa, Saori Okadaa, Takeshi Yoshizakib of the Japan Academy of Development Economics, released in 2013.

1.2. Evaluation of research results on issues within the research scope of the thesis

1.2.1. Theoretically

Previous scientific works only introduced the concept of "protection of intellectual property rights" in general, but did not introduce the concept of "protection of intellectual property rights at the border". Therefore, the thesis will develop to give a specific concept of "protection of IPR at the border".

Concepts and characteristics of controlling IP counterfeit goods by Customs: there is no scientific research on this issue.

1.2.2. Legal status and practice of controlling counterfeit goods on intellectual property of Vietnam Customs

1.2.2.1. Vietnamese law on control of counterfeit goods on intellectual property

Up to now, there has not been any scientific research on Vietnamese law on the control of counterfeit goods related to IPR.

1.2.2.2. Activities to control counterfeit goods on intellectual property of Vietnam Customs

There have not been any separate studies on the protection of intellectual property rights at the border through the control of counterfeit goods on IP by Vietnam Customs.

1.2.3. Proposing to improve Vietnam's law and improve the effectiveness of Vietnam Customs in controlling counterfeit goods on intellectual property

1.2.3.1. Proposal to improve Vietnamese law

Most of the researches said that it is necessary to increase the authority for customs authorities to control, suspend customs procedures, prevent and arrest export and import goods of all types including: including export and transit goods, thereby assigning the initiative to customs authorities in detecting and arresting counterfeit goods on IP.

1.2.3.2. Solutions to improve the efficiency of IP counterfeit goods control

A number of research works by some customs units have proposed some solutions to improve the effectiveness of IPR protection at the border. However, these solutions are no longer consistent with the current practice of Customs.

1.3. General conclusion about the research status of the thesis topic

- Research projects on protecting intellectual property rights at the border through controlling counterfeit intellectual property goods by Vietnam Customs are still very limited. There has not been any work mentioning the control of counterfeit goods on IP at the border of Customs.

- Some theoretical issues such as: origin, concept, characteristics, content and theoretical model of controlling counterfeit intellectual property goods have not been clarified.

- The current state of law and practice of protecting intellectual property rights through control of exported and imported goods and limitations and shortcomings have been analyzed and evaluated by the works. However, some specific regulations related to handling counterfeit IP goods have not been analyzed.

- Solutions to perfect the law and improve the effectiveness of

protecting intellectual property rights at the border through controlling exported and imported goods have been proposed by scientific works from many different research angles. However, the solution to perfect the specific law on border control of counterfeit intellectual property goods has not been clarified.

2. System of issues within the research content of the thesis

2.1. Some theoretical issues on protecting intellectual property rights at the border through controlling counterfeit intellectual property goods

- About IPR protection
- Protection of intellectual property rights at the border.
- Goods forged on IP.
- Control of counterfeit intellectual property goods by Customs.

2.2. Legal status and practice of controlling counterfeit goods on intellectual property of Vietnam Customs

- Researching the current state of law and the practice of applying the law on control authority, control measures and control processes.

- Assessing the practice of controlling counterfeit goods related to IP: The thesis will evaluate the situation of counterfeit goods related to IP and the results of customs control activities; international coordination and cooperation in this regard.

- Limitations and causes of limitations and inadequacies: The thesis points out the inadequacies and limitations in legal regulations and obstacles in the practice of applying the law.

- Limitations on legal regulations and practical application of the law.
- Restrictions on practical implementation of customs control activities.

2.3. Orientation and recommendations to improve the law and solutions to improve the effectiveness of controlling counterfeit intellectual property goods of Vietnam Customs

- *Orientation for improving Vietnamese law:* The thesis offers some directions for Vietnamese law to effectively implement new FTAs and ensure it meets the digital transformation requirements of Vietnam Customs.

- *Proposing to improve the law and improve the effectiveness of Vietnam Customs in controlling counterfeit goods on IP:*

- + Recommendations to improve the law: on policies, authority, control

procedures and a number of other related legal regulations.

+ Solutions to improve the effectiveness of controlling IP counterfeit goods: The thesis proposes solutions to improve enforcement capacity, develop criteria to identify IP counterfeit goods, and build a basic system Customs data and propose to control counterfeit goods on IP when implementing smart customs model.

3. Theoretical basis of the thesis topic

3.1. Questions and Research hypotheses

Question 1: How to understand the protection of intellectual property rights at the border? What are the characteristics of the protection intellectual property rights at the border? What is the role of the protection of intellectual property rights at the border for the socio-economic situation?

Research hypothesis: The concept of protecting of intellectual property rights at the border remains many different views, many scholars identify the concept of protecting of intellectual property rights at the border with the concept of enforcement intellectual property rights at the border.

Question 2: How to understand the problem of controlling counterfeit goods of intellectual property of Customs? What is this activity about? What factors affect the control of counterfeit goods of intellectual property of Customs?

Research hypothesis: Control of counterfeit goods of intellectual property of Customs is understood from many different views, just a measure law, as well as a professional activity of the Customs authority.

Question 3: How was the issue of protecting of intellectual property rights at the border through control counterfeit goods of intellectual property mentioned in international treaties? How have these issues been internalized in the Vietnamese legal documents? What other issues have not yet ensured compliance with Vietnam's commitments in the implementation of international treaties to which Vietnam is a contracting party?

Research hypothesis: Basically, Vietnam's law has relatively fully internalized the provisions of international treaties on enforcement intellectual property rights. However, some issues have not been specified yet to meet the standard of international treaties.

Group 2: Research questions and hypothesis about the state of control goods forging of intellectual property of Vietnamese Customs

Question 1: What are the contents of the law on control of counterfeit goods of intellectual property of Vietnam Customs? Have the provisions of the current law on this issue ensured to be consistent with relevant legal documents and appropriate to the actual situation? What are the difficulties and shortcoming in the application process?

Research hypothesis: Control authority, measures control and control process of import and export counterfeit goods of intellectual property. Some provisions are not consistent between Customs law and the law of intellectual property needs to be clarified, some issues have been regulated but have not been specific instructions, so there are still problems and inadequacies on practical application.

Question 1: How is the practice of protecting of intellectual property rights at the border through the control of counterfeit goods of intellectual property of Vietnam Customs implemented? What are the problems and inadequacies?

Research hypothesis: Vietnam Customs has done many diversified and active activities to control counterfeit goods of intellectual property to effectively enforce intellectual property rights at the border and achieved some positive results.

Group 3: Research questions and hypotheses on solutions to improve the efficiency of controlling counterfeit goods of intellectual property of Vietnam Customs

Question 1: In which direction should the law on the control of counterfeit goods be improved?

Research hypothesis: Recommendations to improve the law must ensure effective and substantive implementation of Vietnam's international commitments on IP, especially new generation FTAs, to meet current reform requirements. Modernize Customs according to the Smart Customs model.

Question 2: With shortcomings and inadequacies that have been studied, what are solutions needed to perfect the law and improve the effectiveness of Vietnam Customs' control of counterfeit goods of intellectual property?

Research hypothesis: Legal solution to ensure compliance with international standards on enforcement of intellectual property rights.

3.2. Theory of thesis research

From the perspective of legal philosophy, scholars propose four basic

philosophies and two fundamental theories as the basis for protecting intellectual property rights, including:

Philosophy of natural law (the natural law thesis): emphasizes the protection of intellectual property rights as a mere recognition of the inherent rights of humans in possessing property.

The reward thesis: the creator has contributed to society by creating literary, artistic, scientific works and industrial property objects.

The incentive thesis: The creator must invest time, effort, and finance to create an IP object, so it is necessary to give the creator some exclusive rights during the period of time. certain deadlines to encourage them to be creative.

The disclosure philosophy (the disclosure): when the creator accepts the disclosure of information about intellectual property and society benefit from the use of intellectual property objects.

The theory of balance of interests: The philosophy of Locke, Hegel has significant impacts on the protection of intellectual property rights, including issues related to the balance of interests. The balance of interests in legal regulation adjustment of intellectual property relations is not only the foundation of intellectual property law, but also the driving force for the development of innovative research.

Principle of ensuring fair competition: On the one hand, the intellectual property rights creates a monopoly for the owner of the intellectual property object, on the contrary, must not obstruct or cause inappropriate damage to the healthy competition in the market.

CHAPTER 1

SOME THEORY ISSUES ON PROTECTION OF INTELLECTUAL PROPERTY RIGHTS AT THE BORDER THROUGH THE CONTROL OF COUNTERFEIT GOODS OF INTELLECTUAL PROPERTY

1.1. Theory of protecting of intellectual property rights at the border

1.1.1. The protection of intellectual property rights

From the study of approaches to IP rights, the general concept of IP rights can be given as follows: “Intellectual property rights are the rights of individuals and organizations to intellectual property - products of their own. intellectual labor created or owned by individuals or organizations, including copyright and copyright-related rights, industrial property rights and rights to plant varieties”.

From the perspective of researching the thesis topic, IP rights are approached from the following aspects:

Firstly, study IP rights in relation to the provisions of the law on IP rights and the actual implementation of that right.

Secondly, IP rights do not exist independently in the IP legal system but must be considered in the overall relationship with commercial law, foreign trade management law and civil law.

Thirdly, IP rights as a unified legal institution in the national legal system in terms of international integration.

1.1.2. Theory of protection of intellectual property rights

1.1.2.1 Concept and characteristics of protection of intellectual property rights protection

Protection of intellectual property rights is the activity of law enforcement agencies on intellectual property rights and intellectual property rights holders using measures prescribed by law to detect, prevent and handle acts of infringing upon intellectual property rights, handle goods infringing upon intellectual property rights, including goods counterfeiting intellectual property.

IPR protection is different from normal property protection through some of the following characteristics:

Firstly, the object of IPR protection is the object of IP rights contained in the products and goods being protected, regardless of origin or origin.

Secondly, protection of IP rights is carried out within the territory of the country or a number of countries where the object of that IP right is protected and is within the protection term.

Thirdly, regarding the implementing subject, the protection of IP rights is carried out by many different entities.

Fourthly, in terms of protection measures, IPR protection measures are very rich and diverse.

1.1.2.2. Theoretical foundations of intellectual property rights protection

- Protection of intellectual property rights is formed from the inevitable development needs of society.

- Protection of intellectual property (IP rights) is an indispensable and objective requirement as a driving force to promote creative activities, to create wealth and to serve the development of society.

1.1.2.3. Measures to protect intellectual property rights

Such measures include: (i) civil remedies; (ii) administrative measures; (iii) criminal measures; (iv) border control measures.

1.1.3. Overview of intellectual property rights protection at the border

1.1.3.1. Concept and characteristics of protection of intellectual property rights at the border

Protecting intellectual property rights at the border is an activity of Customs and intellectual property rights holders who use the measures prescribed by Customs law and intellectual property law to prevent and treat actions forging of intellectual property rights and goods forging of rights occurs in areas and locations within the scope of Customs operation.

Protection of intellectual property rights at the border has specific characteristics. Details are as follows:

Firstly, protecting intellectual property rights at the border is an activity with foreign element.

Secondly, in term of subjects: the protection of intellectual property rights at the border is carried out by Customs authorities.

Thirdly, about measures: professional measures customs authorities use is customs inspection, supervision and control, suspension of customs procedures for export and import goods suspected of infringing IPR rights.

Fourth, the object of protection of intellectual property rights at the

border is the intellectual property rights being protected in Vietnam.

Fifth, protection of intellectual property rights at the border is implemented in limited to a certain geographical scope; those are area, locations within the area of Customs operations.

1.1.3.2. Measures to protect intellectual property rights at the border

a. Control import and export goods related to intellectual property

- Measures to suspend Customs procedure for goods suspected of forging of intellectual property.

- Measure for inspection and supervision to detect goods suspected of forging of intellectual property.

b. Handling violations by administrative measures

1.2. Theory of counterfeit goods of intellectual property

1.2.1. Concept of counterfeit and counterfeit goods on intellectual property

1.2.1.1. The concept of counterfeit goods

Counterfeit goods are a type of goods manufactured according to a prototype but do not meet the quality and quality standards compared to the prototype; or forged in appearance (labels, packaging) with the aim to deceive consumers.

1.2.1.2. The concept of counterfeit goods on intellectual property

Article 213 of the 2005 IP Law stipulates that IP counterfeit goods “include goods with counterfeit trademarks and forged geographical indications (hereinafter referred to as counterfeit trademark goods) and pirated copies”.

Compared to international treaties (TRIPs and ACTA) and the IP Law, there is a broader approach to the scope of objects identified as counterfeit goods of IP. In many countries, the concept of counterfeit is always associated with an IP violation.

It is possible to give the definition: “Intellectual property counterfeit goods are goods or goods packages with trademarks, signs or stamps, labels containing identical or similar signs to the extent that it is difficult to distinguish them. with the trademark or geographical indication being protected, used for the same item without the permission of the trademark owner or the organization managing the geographical indication; or pirated goods are copies produced without the permission of the copyright or related right owner”.

1.2.2. Characteristics of counterfeit goods of intellectual property

Firstly, counterfeit goods of intellectual property are goods forging in appearance.

Secondly, counterfeit goods of intellectual property are goods forging of intellectual property at the highest level for intellectual property rights objects.

Thirdly, counterfeit goods of intellectual property cause damage and are most likely to cause the heaviest damage to consumers and intellectual property rights holders.

1.2.3 Criteria to identify counterfeit goods of intellectual property

- a. Identification through fake elements.
- b. Identification through the scope of protection of the object of intellectual property rights.
- c. Identification through permission of the intellectual property rights holder.

1.2.4 Distinguishing counterfeit goods of intellectual property with other intellectual property infringing goods

1.2.4.1. Regarding the scope of the object of intellectual property rights being infringed.

1.2.4.2 Regarding the nature and extend of the infringement

- Extent of damage
- The degree of fault of the subject implementing the actions of infringing rights

1.2.4.3 Legal consequences

1.2.4.4. The level of control of the Customs authorities

1.3 Theory of controlling counterfeit goods of intellectual property

1.3.1. The concept and characteristics of controlling counterfeit goods of intellectual property

Controlling counterfeit goods of intellectual property í a measure to protect intellectual property rights by the Customs' implementation through professional activities to detect, prevent and handle imported and exported goods that forging of intellectual property, handle actions of infringing upon intellectual property rights at the border.

Control counterfeit goods of intellectual property as the following legal characteristics:

- *Control range*: the same as the scope of space and time of the protection of intellectual property rights at the border.

- *Control subject*: Customs authorities

- *Control object*: goods imported and exported, activities import and export goods at the border.

- *Control content*: Customs documents, means of transport import and export goods.

1.3.2. Principle of controlling counterfeit goods of intellectual property

Firstly, the intellectual property rights holders have the rights to request the Customs authorities to apply the control measure for export and import goods showing signs of forging of intellectual property rights (including intellectual property counterfeiting).

Secondly, the Customs authority only issues a decision to suspend the clearance of procedures for export and import goods when the intellectual property rights holder meets certain conditions.

Thirdly, the suspension of Customs clearance procedures for export and import goods showing the signal of infringing intellectual property rights (including counterfeit goods of intellectual property), does not apply to non-commercial goods.

1.3.3. Content, role and trend of regulating the law on controlling counterfeit goods on intellectual property

a. The content of the law on control of counterfeit goods of IP includes control authority, sanctions for handling counterfeit goods of IP, control measures and procedures to control counterfeit goods of IP.

b. The role of controlling counterfeit goods in IP

- From a social perspective.

- For activities of state management of Customs.

- For rights holders

c. The trend of adjusting the law to control counterfeit goods on IP

The improvement of the law governing the control of counterfeit IP goods of the Customs must aim to achieve the requirements and objectives set out in the Resolutions of the Party and the Government.

CONSLUSION CHAPTER I

Firstly, the thesis has introduced the approaches to IP rights from the research perspective of the thesis topic; explanations to clarify the origin and inevitability of IPR protection activities.

Secondly, building the concept of "Protecting IPR at the border" is one of the new points of the thesis.

Thirdly, Analyze and interpret the concept of counterfeit goods on IP of Vietnam with some countries and related international treaties. On the basis of the above studies, the thesis has built the concept of "counterfeit goods" and "fake goods of IP".

Fourthly, the thesis has pointed out the characteristics of counterfeit goods on IP; defining criteria to identify and distinguish counterfeit goods of IP from other infringing goods.

Fifthly, focus on analysis and evaluation to clarify the nature; outlining the basic legal characteristics, principles of the control of counterfeit goods on IP; distinguishing the control of goods infringing IPRs from the control of counterfeit goods of IP, thereby building the concept of "Control of counterfeit goods of IP".

In particular, Chapter 1 gave a theoretical model of “customs' control of counterfeit goods on IP”.

CHAPTER II

CURRENT LEGAL STATUS AND ACTUAL CONTROL OF COUNTERFEIT GOODS OF INTELLECTUAL PROPERTY BY VIETNAM CUSTOMS

2.1. Current status of law to control counterfeit goods of intellectual property of Customs

2.1.1. Authority to control counterfeit goods on intellectual property

2.1.1.1. Scope of authority

- The specialized legal system on IP and Vietnam's Customs law stipulating the scope of Customs' jurisdiction on this issue are still different: scope of control, controlled object and control authority.

- The Vietnamese law and TRIPs are basically compatible, but the provisions on this content of Vietnamese law are still not fully compatible with the CPTPP and EVFTA.

2.1.1.2. Ex – officio authority

The current Vietnamese legal documents have not yet agreed on the scope of the Customs' Ex– officio authority in inspection counterfeit goods of intellectual property.

2.1.2. Measures to control counterfeit goods on intellectual property

2.1.2.1. Inspection and supervision to detect goods with signs of intellectual property counterfeiting

- Receive and process requests for control of counterfeit intellectual property goods. The organization is done through the email system, the data is still managed manually, so it is often not timely and lacks information at the facility.

- In some countries, the online receipt and processing of Application Forms has more advantages than in Vietnam because it has built an electronic database of IPR control registration for import and export goods.

2.1.2.2. Suspension of customs procedures for goods suspected of intellectual property counterfeiting

- *Applicable case*: when Customs inspection and supervision detects goods with signs of intellectual property counterfeiting.

- *Conditions to apply*: Have a Request Form and pay a security

deposit.

- *Procedures for suspension*: Sub-department sends a notice of suspect goods to the right holder, within 3 working days, the right holder must send a request for suspension to the customs office to decide to suspend the procedures. customs for the suspected shipment.

- *Legal consequences*: Customs authorities will decide to suspend or continue customs procedures for the shipment.

2.1.3. Measures for handling counterfeit goods of intellectual property

A number of handling measures for counterfeit goods related to IPR that the Customs rarely apply or cannot apply because they are not suitable with the actual operation characteristics of Customs.

2.1.4. The process of controlling counterfeit goods on intellectual property

The control of export and import goods in general, and IP counterfeit goods in particular are not only carried out by the Customs Sub-Department in the customs clearance process, but also with the participation of a specialized anti-smuggling force to control the parties. next to the customs clearance process.

2.1.4.1. Control of counterfeit goods on intellectual property in customs clearance

2.1.4.2. Control of counterfeit goods on intellectual property by customs control forces

2.2. Actual control of counterfeit goods of intellectual property by Vietnam Customs

2.2.1. Implement the authority to counterfeit goods of intellectual property of Customs

2.2.1.1. Regarding scope of authority

For export goods: only stop at the level of control.

For goods in transit: problems arise related to the handling of acts of infringement of rights, and goods in transit forged IPRs.

In case the suspension of Customs procedure is not applied: according to current regulations in practice at Customs units, there are two different views.

2.2.1.2. Ex- officio authority

Customs has not paid attention to the exercise of implicit authority without the request of the IPR holder.

- *Regarding objective reasons*, due to the level of competence of customs officers and the degree of coordination between Customs and IPR holders.

- *Regarding the subjective reasons*, many units have not paid attention to exercising their implicit authority when controlling counterfeit goods on IP.

2.2.2. Implement measures to control counterfeit goods of intellectual property

2.2.2.1. Measures for inspection and supervision to detect goods showing signs of forging of intellectual property

This measure is applied by the Customs at the same time as the import and export customs clearance process.

2.2.2.2. Measure to suspend Customs procedures

Requests to suspend customs procedures by right holders are made mainly from information discovered by Customs during customs clearance.

2.2.3. Implement measures to handle counterfeit goods of intellectual property

- Customs measures are commonly applied because they are consistent with the characteristics of Customs: confiscation, forced re-export, and forced destruction of infringing goods.

- Rarely applied Customs measures: Forced surrender of illegal money, distribution or use for non-commercial purposes.

- Customs measures that are not subject to application conditions include: confiscation of raw materials, materials, and means used mainly to produce and trade IP counterfeit goods; Forcible re-export of the above goods if the infringing elements are eliminated.

2.2.4. Implement procedures to control goods forging of intellectual property

Customs implements a process to control counterfeit goods related to IPR that is wider than the scope of current legal documents. The law stipulates control only from the time the customs declarant opens the declaration until the goods are cleared. However, Customs controls both the pre-clearance and post-customs clearance stages.

2.2.4.1. Control goods forging of intellectual property before Customs

clearance

2.2.4.2. Control of goods forging of intellectual property in Customs clearance

2.2.4.3. Control goods forging of intellectual property after Customs clearance

2.2.4.4. Control of counterfeit goods on intellectual property by customs control forces

2.2.5. International coordination and cooperation in controlling goods forging of intellectual property at the border

2.2.5.1. Coordinating with enforcement agencies and intellectual property rights holders

a. Coordinating with intellectual property rights enforcement agencies

b. Coordinating with intellectual property rights holders

2.2.5.2. International cooperation on the control of counterfeit goods on intellectual property

International cooperation in controlling IP counterfeit goods is a way for Customs to fulfill Vietnam's commitments in signed international treaties.

The General Department of Customs has developed and established a regular communication mechanism with international organizations and non-governmental organizations to best serve the requirements of controlling counterfeit goods related to IPR at the border.

CONCLUSION CHAPTER II

1. Assess the current situation of Vietnamese law, the laws of some countries and relevant international treaties on: control authority, control measures, handling measures and procedures for controlling counterfeit goods IP fraud.

2. Practice of controlling counterfeit intellectual property goods

Customs' activities to control counterfeit intellectual property goods in recent times have achieved many positive results, with violations detected mainly during the process of carrying out customs procedures. However, there still exist some limitations such as:

- Customs does not have the authority to sanction exported goods with counterfeit intellectual property rights, so the handling of the case takes a long time. Regulations on controlling IP counterfeit goods in transit have many different interpretations, leading to inconsistent application.

- Regulations on temporary suspension of customs procedures for 03 working days and cases of stopping handling cases when there is a dispute are not consistent with practical customs operations.

- Many measures to handle counterfeit IP goods are not feasible because they are not consistent with the specific functions and tasks of Customs.

- The content of the law regulating the process of controlling counterfeit intellectual property goods does not fully cover the actual professional activities of the Customs.

- The number of actual violations seized by Customs is still modest, not reflecting the actual situation and capacity of Customs.

- Coordination between Customs and management agencies, IPR enforcement agencies is still modest.

- The results of coordination activities with intellectual property rights holders have not met the expectations of Customs.

CHAPTER III

ORIENTATIONS, RECOMMENDATIONS FOR IMPROVING LAW AND SOLUTIONS TO EFFECTIVELY CONTROL OF COUNTERFEIT GOODS OF INTELLECTURE PROPERTY BY VIETNAM CUSTOMS

3.1. Orientation to improve Vietnam's law on control of counterfeit goods on intellectual property at the border

3.1.1. Meet the requirements of implementing international commitments on the protection of intellectual property rights at the border

Ensure compatibility with international treaties that greatly affect Vietnam's IP legal system such as TRIPs, EVFTA and CPTPP.

3.1.2. In line with the practice of controlling counterfeit goods on intellectual property of Vietnam Customs

First, achieving international standards for enforcement of border control measures on IP.

Second, change according to methods suitable for the automatic customs clearance environment on the digital platform according to the smart customs model.

3.2. Recommendations for improving law on control of counterfeit goods on intellectual property at the border

3.2.1. Completing the general regulations on control of counterfeit goods on intellectual property of Customs

- Expanding the group of acts of using the object of IP rights including.

- Supplementing the scope of import and export goods that do not suspend customs procedures.

- Supplementing regulations on the joint responsibility of the processing recipient of counterfeit goods in terms of intellectual property for foreign traders.

- Supplementing regulations on funding for remedial measures when violators fail to perform their obligations

- Supplement regulations on norms of intellectual property counterfeit goods that are not handled for violations

3.2.2. Completing regulations on the authority of Customs to control

counterfeit goods on intellectual property

- Authority to handle goods in transit with IP fraud: it is necessary to stipulate that Vietnam Customs notifies the destination country to handle goods in transit with IP fraud.

- Authority to handle intellectual property counterfeit export goods: add authority to handle intellectual property counterfeit export goods to the Customs agency.

- Implied authority to control counterfeit IP goods: add regulations on Customs being exempted from legal liability when exercising ex officio authority to be consistent with TRIPs.

3.2.3. Completing regulations on the process of controlling counterfeit goods on intellectual property of Vietnam Customs

- Supplement regulations on professional steps for pre-customs clearance and post-customs clearance control in Circular No. 13/2015/TT-BTC dated January 30, 2015 of the Ministry of Finance.

- Regulate the process of controlling IP counterfeit goods according to groups of types of import and export goods in accordance with the characteristics of each type group.

- Regulations to stop handling a case when there is a dispute according to the documents at the time of acceptance, ensuring not to increase the Customs' liability.

3.2.4. Completing regulations on control measures, measures to handle counterfeit goods of intellectual property

3.2.4.1. Completing regulations on measures to control counterfeit goods on intellectual property

- a. For inspection and supervision measures

- b. For the measure of temporary suspension of customs procedures

3.2.4.2. Completing regulations on measures to handle counterfeit goods of intellectual property.

3.3. Solutions to improve the effectiveness of Vietnam Customs' controlling of counterfeit goods

3.3.1. Improve the capacity of Customs to control counterfeit goods in terms of intellectual property

Firstly, develop standards for full-time public servants in charge of IPR protection work uniformly from central to local levels.

Second, develop and implement a reasonable rotation mechanism.

Third, build in-depth and effective training programs.

3.3.2. Set up a set of criteria to identify counterfeit goods on IP

3.3.2.1. Criteria group on customs declaration

3.3.2.2. Criteria group on customs documents

3.3.2.3. Criteria for actual goods

3.3.3. Building a professional information system on the enforcement of intellectual property rights of Customs

3.3.4. Control counterfeit goods on intellectual property according to smart customs model

3.3.5. Enhancing the effectiveness of cooperation and coordination activities

CONCLUSION CHAPTER III

Firstly, the thesis has provided an orientation to perfect the law to ensure compatibility with new generation FTAs and the practice of controlling counterfeit intellectual property goods of Vietnam Customs.

Secondly, the thesis has made recommendations to improve the law on authority, measures and procedures for controlling counterfeit goods related to intellectual property.

Thirdly, the thesis offers 03 groups of solutions to improve the effectiveness of controlling counterfeit IP goods of Vietnam Customs, including: human resource solutions, professional solutions and technical solutions.

GENERAL CONCLUSION

The thesis "Protecting intellectual property rights at the border through the control of counterfeit goods on intellectual property of Vietnam Customs" has clarified theoretical and practical issues related to the issue, research topic.

In Chapter 1, the thesis has clarified the theoretical basis on issues related to the research topic such as: protection of intellectual property rights, protection of intellectual property rights at the border, counterfeit goods and counterfeit goods of IP, control counterfeit goods on IPR of Customs.

In Chapter 2, the thesis clarifies the legal and practical issues of the research topic; assess and propose limitations and obstacles in legal regulations and difficulties in practical application of the law.

In Chapter 3, based on the research results in Chapter 1 and Chapter 2, the thesis has given the orientation to perfect the Vietnamese law and solutions to improve the effectiveness of controlling counterfeit goods on IP to ensure authenticity. implementing Vietnam's international commitments on IPR enforcement at the border, especially the new generation FTAs.

THE AUTHOR’S PUBLISHED SCIENTIFIC WORKS RELATED TO THESIS THEME

1. Hua Thi Hong (2016), Inadequacies and solutions to improve the law on controlling counterfeit goods of intellectual property, export, in transit, Research magazine Legislative Research No. 08(312), term 2, April 2016, page 45-54

2. Hua Thi Hong (2021), Discussing registration and control of counterfeit goods of intellectual property at the border – Current status and solutions, Journal of Education and Society, special issues May (term 1)/2021, pages 192-197 and 209.

3. Hua Thi Hong, Nguyen Thi Ngoc Bich (2021), Control of counterfeit goods of intellectual property in Customs clearance of exported and imported goods in Vietnam, Journal of Law Profession No. 08/2021 page 48.